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FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CERES MARINE TERMINAL, INC.,

Complainant,

v.

MARYLAND PORT ADMINISTRATION,

Respondent.

Docket No. 94-O 1

**PETITION TO ESTABLISH A "CHINESE WALL" OR, IN THE ALTERNATIVE,
TO PERMIT DISCOVERY REGARDING COMMUNICATIONS BETWEEN
CERES AND THE FEDERAL MARITIME COMMISSION STAFF**

The Maryland Port Administration ("MPA") hereby petitions for an order to preserve the integrity of the Commission's decision-making process and to safeguard MPA's procedural rights on the remand of this case by the United States Court of Appeals for the Fourth Circuit, *See Maryland Port Administration v. FMC*, No. 97-2418 (4th Cir. Oct. 13, 1998).

MPA requests that, with respect to all decision-making on the remand, the Commission establish a "Chinese Wall" to insulate the Commissioners and their staff, on the one hand, from all persons in the Commission's Office of the General Counsel and other staff who participated in the preparation or review of the Commission's brief and argument to the Fourth Circuit, on the other hand. Such relief is needed to ensure that the Commission's decisions on remand are not tainted by *ex parte* communications and by the "post hoc rationalizations" presented to the Fourth Circuit by agency personnel who

collaborated closely with counsel for Ceres Marine Terminals, Inc. ("Ceres") throughout the appeals process.

If the Commission has any hesitation in granting MPA's request, MPA seeks the opportunity to take discovery or otherwise develop a factual record concerning the collaboration between Ceres counsel and FMC staff. We believe that the facts will clearly establish that many arguments presented to the Fourth Circuit by the FMC were jointly arrived at by FMC personnel and Ceres counsel. Such Commission personnel must now be fenced off from the decision-making process on remand.

I. **BACKGROUND**

This case involves Ceres' challenge to the terms of a terminal facilities lease that it negotiated with MPA and operated under for more than eighteen months before filing its complaint. MPA has argued throughout these proceedings that Ceres' acceptance and operation under the lease is incompatible with Ceres' belated challenge to a lease that could not have existed without its consent. Since this was a negotiated lease, not a tariff, Ceres' claims should have been barred by standard principles of waiver and estoppel. In its order issued on October 10, 1997, however, the Commission rejected MPA's arguments without addressing their merits, MPA appealed the Commission's order on this and other grounds.

In the appeal proceedings, the Commission's counsel worked closely with Ceres' counsel in jointly preparing the arguments submitted in the Commission's brief. That brief attempted to defend the Commission's rejection of MPA's estoppel defense by presenting six pages of detailed arguments against MPA's position. Since the Commission has never adopted these arguments, the Fourth Circuit rejected the attempts of Commission counsel and Ceres to substitute their lawyers' arguments for a reasoned decision by the

Commission itself, holding that it would be improper to “accept agency counsel’s ‘post *hoc* rationalization for agency action.” *Maryland Port Administration, supra*, slip op. at 8 (quoting *Burlington Truck Lines v. United States*, 371 U.S. 156, 168 (1962)). The court therefore reversed the FMC’s decision and remanded the case for the Commission “to consider the merits of the MPA’s estoppel claim.” *Id.* at 7.’

II. THE NEED FOR A "CHINESE WALL"

The present posture of the case requires the Commission to take special steps to ensure that the *post hoc* rationalizations devised the Commission’s counsel and Ceres’ lawyers, and associated *ex parte* contacts, not taint the decision-making process on remand. There is no doubt that counsel for Ceres and the Commission collaborated closely in preparing the arguments in the Court of Appeals. Indeed, Ceres’ counsel personally signed a joint motion on behalf of both Ceres and the Commission stating, *inter alia*, that “[w]e have been working closely to avoid duplication and to constrain the length of our briefs;” that Ceres and Commission counsel had been exchanging drafts and “very detailed outlines;” and that there were “significant efforts by [Commission counsel] and [Ceres counsel] to coordinate their briefing an effort we represent will be continuing.”* Later, Ceres “adopt[ed] and incorporate[d] by reference the entirety” of the Commission’s brief. (Ceres Br. at 1.) It is indeed close collaboration when counsel for a private intervenor signs and tiles motions for the agency in the Court of Appeals.

¹ The court expressed skepticism about other aspects of the Commission’s order, and encouraged the Commission “to revisit its conclusion on the damages due to Ceres and to explain more fully its conclusion that Ceres should not have to prove the damages it actually suffered but that damages should equal the difference between the rates charged.” *Id.* at 8.

² See attached “Motion of Respondents and Intervenor For Partial Reconsideration ,” pp. 3 and 5 (Jan. 13, 1998).

We do not suggest that it was improper for Commission counsel and Ceres lawyers to cooperate in the Court of Appeals. To the contrary, the Fourth Circuit encourages consultation in order to avoid duplication in the briefs. Here the problem is that Ceres and Commission counsel jointly prepared and submitted to the Court of Appeals impermissible *post hoc* rationalizations -- that is, arguments about the issues that were devised by the lawyers and that bore no relation to anything in the Commission's decision. The decision-making process on remand must be protected from the danger that those lawyers' arguments -- which are pure advocacy -- not taint the Commission's consideration of the waiver and estoppel issue (and the other issues on which *post hoc* rationalizations were presented in the Court of Appeals). Commission counsel and other staff who opposed MPA as litigation adversaries in the Court of Appeals -- and who were allied with Ceres in devising the adversary arguments -- should not now be advocating those same arguments behind closed doors in their capacity as drafters of the Commission's decisions or as advisors to the Commission.'

A. Fundamental Administrative Law and
Due Process Principles Warrant The
Relief Requested By MPA.

Orderly administrative procedure and due process principles require the establishment of a Chinese Wall in this situation. Even in the absence of the aggravating circumstances here -- collaboration between Commission counsel and Ceres lawyers in presenting *post hoc* rationalizations -- it is settled that agency personnel must not participate

³ See 46 C.F.R. § 501.5(d)(2) (Office of the General Counsel "[p]rovides written or oral legal opinions to the Commission in appropriate cases"); *id.* § 501.5(d)(3) (Office of the General Counsel "[p]repares and/or reviews for legal sufficiency, before service, all final Commission decisions, orders, and regulations").

in the adjudication of a matter in which they have acted as advocates or have played an investigative role. The Administrative Procedure Act explicitly prohibits any persons “engaged in the performance of investigative or prosecuting functions” from “participat[ing] or advis[ing] in the decision, recommended decision or agency review.” 5 U.S.C. § 554(d).⁴

The purpose of this provision is to “separate the investigative and prosecutorial functions [of agencies] from the adjudicative function.” *Utica Packing Co. v. Block*, 781 F.2d 71, 76 (6th Cir. 1986). It is premised on the notion that one “who has buried himself in one side of an issue is disabled from bringing to its decision that dispassionate judgment which Anglo-American tradition demands” and reflects the need to “preclud[e] from adjudicative functions those who have developed a ‘will to win,’” *Grolier Inc. v. FTC*, 615 F.2d 1215, 1219-20 (9th Cir. 1980) (internal quotation omitted).

Here, Commission staff who participated in the Court of Appeals case were acting as prosecutors with an adversary “will to win”; specifically, they allied themselves with the complainant, Ceres, and they jointly advocated that MPA had violated the Shipping Act on the basis of theories that have not been accepted by the Commission. This surely triggers Section 554(d), which involves a functional rather than a formalistic approach to identifying whether agency personnel are serving as “investigator,” “prosecutor,” and “adjudicator.” Section 554(d) applies to “not only individuals with the title of ‘investigator’ or ‘prosecutor,’ but all persons who had, in that or a factually related case, been involved with *ex parte* information, or who had developed by prior involvement with the case a ‘will

⁴ The separation of agency functions requirement contained in APA § 554(d) applies to this proceeding, because it is an adjudication required to be determined on the record after opportunity for an agency hearing. 46 C.F.R. § 502.142.

to win.” *Id.* at 1220. In addition, the concept of “adjudicator” is broad enough to encompass not only the Commissioners or ALJ’s, but also those who play an actual role in the decisionmaking process, including legal advisors or assistants. See Section 554(d); *Utica Packing Co.*, 781 F.2d at 76 (attorney in the USDA’s Office of General Counsel is included within the term “adjudicator” because his assignment was to help the chosen adjudicator “in all matters legal”).

Beyond the statutory requirements, principles of due process also require that those who have served as advocates must not participate in adjudication of related issues. See, e.g., *American General Insurance Co. v. FTC*, 589 F.2d 462 (9th Cir. 1979) (FTC commissioner who had represented agency against party in Court of Appeals when he had been FTC General Counsel could not participate in later remand adjudication); *American Cyanamid Co. v. FTC*, 363 F.2d 757 (6th Cir. 1966); *Amos Treat & Co. v. SEC*, 306 F.2d 260 (D.C. Cir. 1962); *Trans World Airlines v. CAB*, 254 F.2d 90 (D.C. Cir. 1958).

The Administrative Procedure Act -- and principles of due process -- therefore require that all Commission staff who played a role in the Fourth Circuit proceedings be excluded from any role in the decision-making on remand, whether in drafting memoranda and orders, advising the Commissioners, or otherwise. The Commission should take formal steps to identify all such persons, make specific disclosures to MPA of the identity of such persons, and allow discovery where necessary to identify such persons and their actions. See *Grolier*, 615 F.2d at 1221-22. All such persons so identified (the “insulated personnel”) should then be excluded from further participation in this matter by a Chinese Wall (1) forbidding the insulated personnel from participating in this case on remand or exchanging information about this case with Commissioners, their

1
staff or others participating in or advising on the adjudication; (2) prohibiting the Commissioners, their staff or others participating in the adjudication from gaining access to the files of the insulated personnel regarding these proceedings; and (3) requiring all agency personnel to comply with these prohibitions. *Cf. Comley v. Board of Education of Lockport Township High School District 205*, 17 F.3d 1059, 1065 (7th Cir. 1994), *cert. denied*, 513 U.S. 816 (1994). Any breaches of these requirements occurring before or after entry of the Commission's order establishing these requirements should be disclosed to all parties

B. The Insulated Personnel Must Also Be Screened
From Further Participation in This Case to Prevent
the Spread of *Ex Parte* Communications

The relief requested herein is also necessary to prohibit the insulated persons from serving as a conduit to the Commissioners of *ex parte* communications exchanged with Ceres' counsel during their close collaboration in the Fourth Circuit proceedings.

The separation of agency functions required by Section 554(d) of the Administrative Procedure Act also protects the adjudicative process from being affected by private, off-the-record communications received by agency personnel performing an investigative or prosecutorial role. *Grolier*, 615 F.2d at 1219-20. In addition, Section 557(d)(1) of the APA broadly prohibits "*ex parte* communication relevant to the merits of [an agency] proceeding" between any agency employee who "is or may reasonably be expected to be involved in the decisional process of the proceeding" and any "interested person outside the agency."

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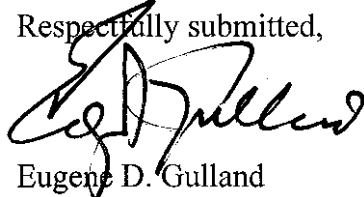
5 The prohibition against *ex parte* communication contained in APA § 557(d) applies to this proceeding, because it is an adjudication required to be determined on the record after opportunity for an agency hearing. 46 C.F.R. § 502.142.

MPA has no way of knowing the full extent and substance of the communications that occurred between Ceres and Commission staff during the Fourth Circuit proceedings, or the degree to which agency counsel's view of this matter was affected by its communications with Ceres. But the close collaboration of Commission counsel and Ceres' lawyers makes it virtually certain that such communications occurred, and that Ceres and Commission counsel worked together to devise *post hoc* rationalizations going far beyond the Commission's decision. The requested relief would protect the Commission's decision-making process on remand from these and other *ex parte* communications between Ceres -- an "interested person outside the agency" -- and the agency staff in the Office of General Counsel and elsewhere who "may reasonably be expected to be involved in the decisional process of the proceeding." See 46 C.F.R. § 501.5(d)(3). Such a device appears to be the only feasible way to protect against the taint of the communications with Ceres.

If the Commission declines to establish a Chinese Wall, MPA requests that the Commission grant it leave to (1) conduct discovery into the communications between Ceres and Commission staff, see *Grolier*, 615 F.2d at 1222, or (2) begin an evidentiary proceeding to determine "the nature, content, extent, source and effect" of any communications that may have transpired between agency counsel and Ceres, and whether those communications might infect this case on remand. See *Portland Audubon Society v. Endangered Species Committee*, 984 F.2d 1534, 1550 (9th Cir. 1992). Such steps represent the absolute minimum that would be required to ensure that "agency decisions made on a

public record are not influenced by private, off-the-record communications from those personally interested in the outcome.” *Id.* at 1539 (quoting *Raz Inland Navigation Co. v. ICC*, 625 F.2d 258,260 (9th Cir. 1980)).

Respectfully submitted,



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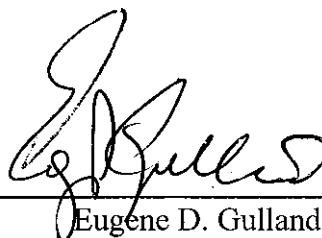
October 23, 1998

CERTIFICATE OF SERVICE

I hereby certify that I have this 23rd day of October, 1998, served copies of the foregoing Petition to Establish a "Chinese Wall" or, in the Alternative, to Permit Discovery Regarding Communications Between Ceres and the Federal Maritime Commission Staff by hand to:

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ATTACHMENT



IN THE UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

No. 97-2418
(94-1)

MARYLAND PORT ADMINISTRATION,

Petitioner.

v.

FEDERAL MARITIME COMMISSION;
UNITED STATES OF AMERICA,

Respondents

CERES MARINE TERMINALS, INC.,

Intervenor

On Petition for Review of an Order
of the Federal Maritime Commission

MOTION OF ~~RESPONDENTS~~ AND INTERVENOR FOR PARTIAL RECONSIDERATION
OF THE COURT'S NOVEMBER 25, 1997 ORDER
IMPOSING A COMBINED LIMITATION ON RESPONDENTS' AND
INTERVENOR'S SEPARATE BRIEFS EQUAL TO THAT OF A SINGLE
APPELLEE BRIEF AND FOR EXPEDITED CONSIDERATION OF THIS MOTION

Respondents Federal Maritime Commission ("FMC") and the United States, and
intervenor Ceres Marine Terminals, Inc. ("Ceres"), hereby move for reconsideration of the
Court's November 25, 1997 Order, to the extent that the Order, sua sponte, imposed on the two
separate briefs therein authorized for respondents and intervenor a combined page limitation

equal to that of a single appellee brief.^{1/} For reasons hereinafter explained, we urge the Court to reconsider that limitation and set a combined page limitation equal to 60 pages of proportional type (or 55 pages of proportional type if the Court denies the Motion of the American Association of Port Authorities ("AAPA") to file a brief amicus curiae in support of Petitioner MPA) subject to the further limitation that neither brief alone may exceed 40 pages of proportional type. Counsel for MPA has been informed of respondents' and Ceres' intention to file this motion and has declined to consent.

Background

The proceeding below was initiated by a complaint filed before the FMC by Ceres against MPA, pursuant to Section 11 of the Shipping Act of 1984 (the "Act"), 46 U.S.C. App. § 1710, and culminated in the FMC decision, here on review, that MPA had violated various provisions of the Act and that Ceres is entitled to reparations as a result. On October 20, 1997, MPA initiated this proceeding for review of that decision pursuant to 28 U.S.C. §§ 2342(3) and 2344 naming the FMC as respondent. Pursuant to 28 U.S.C. § 2344, the United States of America is a

^{1/} While we believe this motion is properly a motion for reconsideration, we do not understand the requirement in Local Rule 27(c) that requests for reconsideration of certain non-controversial orders granted by the Clerk be filed "within 14 days after entry of the order" applies, because the order was entered "For the Court • By Direction," rather than by the Clerk. The Clerk's Office has been aware of our intent to seek relief from the November 27, 1997 order, and has suggested that we wait until this time so as to make reasonably accurate representation?; about the number of additional pages required. If we are incorrect about the inapplicability of the Local Rule 27(c) time limitation, we request that this motion be treated pursuant to Local Rule 28(d), which authorizes motions for permission to submit longer briefs up to 10 days prior to the due date of the brief. While the requirement in that rule of "exceptional reasons" appears aimed at discouraging parties from filing individual briefs in excess of the regular requirements, the reasons set forth in this motion nevertheless fully satisfy that requirement.

statutory respondent. The unopposed motion of Ceres to intervene and to be aligned with the FMC was granted on October 29, 1997.

Petitioner MPA filed its brief on December 15, 1997. The responsive briefs of respondents FMC and the United States, and of intervenor Ceres, are to be filed on January 26, 1998. Order of December 19, 1997.

A December 24, 1997 motion of AAPA to file a brief as amicus curiae in support of petitioner MPA is pending.

This Motion or Reconsideration

The November 25, 1997 Order of which we here seek partial reconsideration was issued in response to a November 24, 1997 joint motion of respondents and intervenor Ceres -- consented to by petitioner MPA -- for leave to file separate briefs. That Order granted that request but limited the briefs to "a combined length not to exceed 50 pages of nonproportional type or 40 pages of proportional type." Our November 24, 1997 motion had requested that the Court not impose such a limitation, and identified that petitioner MPA did not oppose that request. [Motion, p. 5]

As the Clerk's office is aware, the respondents and Ceres have been very concerned that this page limit could prevent them from adequately responding to MPA's brief. Nevertheless, in preparing their responses respondents and Ceres have been attempting to comply with the limitation imposed in the Court's November 25, 1997 Order. We have been working closely to avoid duplication, and to constrain the length of our briefs. However, it has become obvious to us that we cannot file adequate, separate briefs within the combined page limitation imposed by

the Court's November 25, 1997 Order. This would be the case even if we only had to respond to petitioner's brief. The potential need also to respond to AAPA's late-filed amicus brief exacerbates the difficulties raised by the Court's imposition of page limitations appropriate to a single brief in a context where two separate briefs are appropriately tiled by respondents and intervenor.

In addition to an extended Statement of the Case to which substantive response is required, MPA's brief advances no fewer than ten categories of claims of a legal or factual nature, or a combination of both, to which response is required -- including a number of claims that Commission findings lack evidentiary support that can be responded to only by analysis of the extensive and complex evidentiary record.^{2/} AAPA's amicus brief raises additional claims to which a response would be required if AAPA is permitted to **file** its brief. These two briefs have a combined length of 50 pages of proportional type^{3/} -- a circumstance that is relevant to this motion because (a) petitioner MPA is a member of AAPA, (b) the briefs of MPA and AAPA were admittedly coordinated [AAPA December 24, 1997 Motion, ¶ (6)], and (c) large portions of AAPA's brief focus on the specific procedural and factual contexts of the case in a manner that is more typical of a party than of an amicus with broader purposes [AAPA Brief, pp. 6-7, 8-10]

^{2/} Focussing exclusively on the Table of Contents of MPA's brief, and without attempting to compute and classify the large number of subsidiary issues that MPA places in dispute in the text of that brief, it will be seen that three issues of a fundamentally evidentiary nature are raised by MPA's appeal (items III.A.1.(a) and (b), and III.A.2. under "Argument"); five issues are presented as essentially legal in nature (items III.B.1., III.B.2., III.C., III.D., and IV under "Argument"); two broad claims that raise both factual and legal issues are presented (items II and V under "Argument").

^{3/} MPA's brief is 38 pages in length of proportional type, and AAPA's brief is 12 pages in length of proportional type.

Due to a two-week absence from the **office** by Ceres' lead counsel almost immediately following the filing of petitioner's opening **brief**,^{4/} and the impact of the holiday season more generally, neither Ceres nor respondents have yet completed a draft of their briefs. We are therefore unable at this time to represent to the Court precisely the additional number of pages we require to present our positions. However, based on the very detailed outlines that have been completed, and the majority of those sections of the briefs that have been drafted, we believe that the combined page limitation equal to 60 pages of proportional type requested in this motion (55 pages of proportional type if the Court denies **AAPA's** Motion to file an **amicus** brief) -- further limited so that neither brief would exceed 40 pages of proportional type -- is the minimum combined brief length that will permit us to present our positions adequately. That evaluation reflects significant efforts by respondents and intervenor to coordinate their briefing so as to avoid duplication, an effort we represent will be continuing -- necessarily so, since the page limitation we herein propose will itself be highly restrictive given the number and complexity of issues raised, the massive nature of the proceeding below, and the differing perspectives represented by respondents FMC and United States on the one hand, and the private **intervenor/complainant** below Ceres on the other. In this regard, it is relevant to emphasize that we are seeking only 10 pages more than have been filed by petitioners and AAPA -- whose interests are fully congruent -- or, if **AAPA's** motion is denied, only 15 pages more for the two separate briefs that the Court has authorized for respondents and intervenor Ceres than is permitted for a single brief. It is also relevant to emphasize that our request is for a **combined**

^{4/} This long planned absence was one of the grounds identified in the November 3, 1997 Joint Motion of all Parties to Adjust Briefing Schedules.

total, subject to a **40-page** proportional type limitation on either brief -- rather than separate page' entitlements -- so that we can more effectively coordinate our presentations to adhere to the page limitation here proposed.

With respect; we remind the Court that respondents are the United States and an agency of the United States charged by Congress with the administration of its statute, including the impartial adjudication of complaints arising under that statute. Counsel for the FMC has previously represented to the Court that, according to the collective memory of the **FMC's** Office of General Counsel, there has been no Court of Appeals review proceeding in which the FMC has been required to file a brief jointly with a private party who appeared before the agency in the proceeding under **review**,^{5/} and here further represents that the FMC General Counsel's Office is also unaware of any Court of Appeals review proceeding in which the length of the **FMC's** brief has been limited by reference to the length of the brief of a private party. We do not here dispute the Court's authority to impose such a limitation, but strongly urge that the Court act reasonably, recognizing that the representations of bona fide need are being advanced by representatives of the United States.

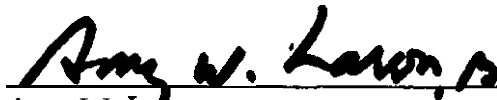
Request For Expedited Consideration

As stated above, counsel for MPA has been informed of respondents' and Ceres' intention to file this motion and has declined to consent. However, our briefs are due in less than two weeks. Especially given the complexities created by the obligation imposed by the Court to coordinate to avoid redundancy, we need immediate guidance from the Court as to the page con-

^{5/} Consent Motion of Respondents and Intervenor For Leave To File Two Separate Briefs. pp. 4-5, November 24, 1997.

straints to which we are to be subject. We accordingly request, in the alternative (a) that our motion for reconsideration be acted upon without awaiting a response from MPA pursuant to Rule 27(b) of the Federal Rules of Appellate Procedure, or (b) that MPA be required to have on file at the Court its response to this motion for reconsideration by close of business Wednesday, January 14, 1998 -- a copy of this motion being hand served upon MPA on January 13, 1998 -- so that the matter can be placed before the Court without delay.

Respectfully submitted,



Amy W. Larson
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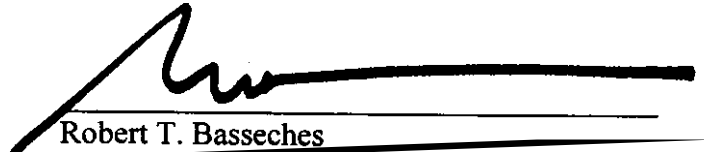
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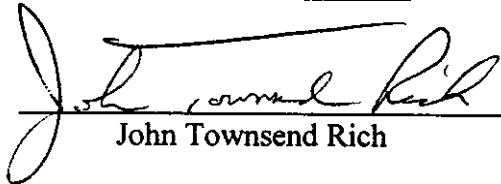
CERTIFICATE OF SERVICE

I hereby certify this 13th day of January 1998 that I served a copy of the foregoing upon the parties to those proceedings by delivery as indicated:

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